

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION  
Armstrong Flight Research Center (AFRC)  
Justification for an Exception to Fair Opportunity

**Description of the action being approved:** This justification documents the basis for issuing an order under the NASA Suborbital/ Hosted Orbital Flight and Payload Integration Services (FO IDIQ 4) using an exception to the Fair Opportunity process.

**Description of the supplies or services required to meet the agency's needs:** This action is a firm-fixed price task order for the integration and flight of the Microfluidic Processing for Life Detection (FORGE) payload. The government requires the payload to fly one suborbital flight under Flight Profile 1 (P1) as defined in the performance work statement of contract 80AFRC25DA001. The total estimated price of the proposed order is [REDACTED] and the estimated period of performance is from the task order award date to December 31, 2025.

**Identification of Exception to Fair Opportunity:**

- ☐ FAR 16.505(b)(2)(i)(A), The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.
- ☒ FAR 16.505(b)(2)(i)(B), Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.
- ☐ FAR 16.505(b)(2)(i)(C), The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.
- ☐ FAR 16.505(b)(2)(i)(D), It is necessary to place an order to satisfy a minimum guarantee.
- ☐ FAR 16.505(b)(2)(i)(E), For orders exceeding the simplified acquisition threshold a statute expressly authorizes or requires that the purchase be made from a specified source.
- ☐ FAR 16.505(b)(2)(i)(F) In accordance with section 1331 of Public Law 111-240 (15 U.S.C. 644(r)), contracting officers may, at their discretion, set aside orders for any of the small business concerns identified in 19.000(a)(3). When setting aside orders for small business concerns, the specific small business program eligibility requirements identified in part 19 apply.

**Supporting Rationale:** This payload was competitively solicited under the previous NASA Suborbital/ Hosted Orbital Flight and Payload Integration Services (FO IDIQ 3) Profile 1 providers. As a result of that solicitation task order 80AFRC21F0063 was awarded to Blue Origin. The payload was flown on the Blue Origin New Shepard spacecraft and was designed, built, and tested for that platform. The payload is currently installed in a Blue Origin locker, ready for its second flight. Since each flight provider has a unique integration process which is specific to the vehicle that the payload is being integrated into flying this payload on any other platform would require a redesign of the payload, support for reviews by the flight provider, installation of the payload, and repeating the environmental testing. In supporting these activities, the government would incur significant additional costs and delays.

**Determination that the anticipated cost to the Government will be fair and reasonable:**

The contracting officer will verify that the proposed non-standard services labor costs are acceptable by performing a price analysis. A detailed breakout of non-standard services will be requested to assist with the price analysis. Pricing for standard services shall be in accordance with the base contract and align with the negotiated rates for calendar year (CY) 2025. Pricing will be determined fair and reasonable by using FAR 15.404-1 Proposal Analysis Techniques.

**Other Facts:**

None.

**A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made:**

None.

**Flight and Payload Integration Services Multiple Award IDIQ**

**JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY  
SIGNATURE PAGE**

I certify that the requirements and technical data contained herein, and which form a basis for this justification are accurate and complete.

[Redacted Signature]

[Redacted Name]

Technical Representative

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief. Based on the information provided in this justification, and as the approving official, I have determined that the exception at FAR16.505(b)(2)(i)(B) applies to the order.

[Redacted Signature]

[Redacted Name]

Contracting Officer